

1. Line 9 through 15:

9 →establishes a fee for a registration or renewal of a heavy duty vehicle with a 2009 or older
 10 model year;
 11 →provides for the deposit of revenue from the registration or renewal fee into the
 12 ~~fund~~ → ~~[Environmental Mitigation and Response]~~ Transportation ←~~fund~~ Fund; and
 13 →makes technical and conforming changes.
 14 **Money Appropriated in this Bill:**
 15 None

2. Line 127 through 154a:

127 Section **41-1a-1226**. is enacted to read:
 128 **41-1a-1226 (Effective 05/06/26)** Heavy duty emissions compliance fee -- Deposit.
 129 (1) As used in this section:
 130 ~~fund~~ → [~~{(a)}~~ (i)] ~~(a)~~ ←~~fund~~ "High emissions heavy duty vehicle" means a motor vehicle
 130a that has:
 131 ~~fund~~ → [~~{(A)}~~] (i) ←~~fund~~ a gross vehicle weight rating of more than 14,000 pounds; and
 132 ~~fund~~ → [~~{(B)}~~] (ii) ←~~fund~~ a model year of 2009 or older.
 133 ~~fund~~ → [~~{(iii)}~~] (b) ←~~fund~~ "High emissions heavy duty vehicle" does not include:
 134 ~~fund~~ → [~~{(A)}~~] (i) ←~~fund~~ a farm tractor;
 135 ~~fund~~ → [~~{(B)}~~] (ii) ←~~fund~~ a farm truck;
 136 ~~fund~~ → [~~{(C)}~~] (iii) ←~~fund~~ an implement of husbandry;
 137 ~~fund~~ → [~~{(D)}~~] (iv) ←~~fund~~ an ambulance;
 138 ~~fund~~ → [~~{(E)}~~] (v) ←~~fund~~ a law enforcement vehicle;
 139 ~~fund~~ → [~~{(F)}~~] (vi) ←~~fund~~ a fire engine; ~~fund~~ → [~~{or}~~]
 140 [~~{(G)}~~] (vii) ←~~fund~~ a vehicle owned and used by the United States government or by
 140a the state or a
 141 political subdivision of the state ~~fund~~ → [~~{ }~~]; or
 141a (viii) a vehicle designed and used for the collection and transportation of
 141b municipal solid waste and garbage.
 142 [~~{(b)}~~ (i) "Major nonattainment county" means a county:]
 143 [~~{(A)}~~ of the first or second class, as described in Section 17-60-104; and]

144 [{~~(B)~~ in an ozone nonattainment area, as that term is defined in 42 U.S.C. Sec. 7501.}]
145 [{(ii) "Major nonattainment county" includes:}]
146 [{(A) Davis County;}]
147 [{(B) Salt Lake County;}]
148 [{(C) Utah County; and}]
149 [{(D) Weber County.}] ←
150 (2) Except as provided in Section 41-1a-1209, beginning on January 1, 2027, an applicant
151 shall pay a heavy duty emissions compliance fee in an amount of \$175 at the time an
152 application is made for registration or renewal of a high emissions heavy duty vehicle.
153 (3) The division shall deposit revenue generated under Subsection (2) into the
154 ← [{Environmental Mitigation and Response Fund created in Section 19-1-603}]
154a Transportation Fund created in Section 72-2-102 ←.